

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS

ERIC ROMULUS AND STEVE BOURSIQUOT,

Index No.:

Plaintiffs,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, DETECTIVE THOMAS
CLEMENTI, Tax No.959558, DETECTIVE SPECIALIST
TIMI TOMACRUZ, Tax No. 947545, SERGEANT PIERO
LASAPONARA, Tax No. 947157, and POLICE
OFFICERS JOHN DOES #s 1-10 (names and numbers of
whom are unknown at present),

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 30, 2023

Yours, etc.



JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE THOMAS CLEMENTI, Tax No.959558, 63trd Precinct Detective Squad
DETECTIVE SPECIALIST TIMI TOMACRUZ, Tax No. 947545, 63rd Precinct
SERGEANT PIERO LASAPONARA, Tax No. 947157, Warrant Section

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ERIC ROMULUS AND STEVE BOURSQUOT,

Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE THOMAS
CLEMENTI, Tax No.959558, DETECTIVE SPECIALIST
TIMI TOMACRUZ, Tax No. 947545, SERGEANT PIERO
LASAPONARA, Tax No. 947157, and POLICE
OFFICERS JOHN DOES #s 1-10 (names and numbers of
whom are unknown at present),

Defendants.

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Plaintiffs ERIC ROMULUS AND STEVE BOURSQUOT, by their attorneys, Jacobs & Hazan, PLLC, as and for their Verified Complaint herein allege, upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiffs allege that on September 30, 2020, at approximately 1:54 pm, plaintiffs were lawfully present in the vicinity of 619 East 76th Street, Brooklyn, New York at which time defendants unlawfully stopped, questioned, frisked, searched, handcuffed, and falsely arrested plaintiffs, without probable cause or legal justification. At no time did either plaintiff commit a crime or violate the law, nor did the officers possess objective facts to establish probable cause to believe either plaintiff committed a crime or violated the law. The officers transported plaintiffs against their will to the 63rd precinct where they were unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy holding cell for many hours. The officers provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence to purportedly justify why they arrested plaintiffs and charged them with committing crimes. Plaintiffs was transported to Kings County Central Booking on October 1, 2020, whereat the unlawful detention continued until they were each arraigned in Kings County Criminal Court, on October 1, 2020, approximately 24 hours after they were initially arrested. Plaintiffs were each charged with crimes they did not commit and that

the police officers lacked probable cause to accuse them of committing, including but not limited to Criminal Possession of a Loaded Firearm, Criminal Possession of a Weapon, Obstructing Governmental Administration, Possession of Pistol Ammunition, and Unlawful Possession of Marijuana Attempted Murder, Assault and Criminal Possession of a Weapon. The court set bail for both plaintiffs at arraignment and neither plaintiff was able to immediately post bail. Therefore, both plaintiffs were remanded into New York City Department of Corrections custody and detained at the Manhattan Detention Center until they posted bail. Both plaintiffs were released from custody on October 2, 2020, after they posted bail. Plaintiffs each made numerous court appearances in Kings County Criminal Court to address the false charges brought against them. All charges brought against Eric Romulus were dismissed and sealed in their entirety and terminated in plaintiff's favor on October 19, 2021. All charges brought against Steve Boursiquot were dismissed and sealed in their entirety and terminated in his favor on November 24, 2021. At no time relevant herein did either plaintiff commit a crime, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe either plaintiff committed a crime or violated the law. Those officers that did not physically touch either plaintiff but observed their fellow officers violating plaintiffs' rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff ERIC ROMULUS is a resident of the state of New York.
3. Plaintiff STEVE BOURSQUOT is a resident of the state of New York.
4. Defendant DETECTIVE THOMAS CLEMENTI, Tax No.959558, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
5. Defendant DETECTIVE THOMAS CLEMENTI, Tax No.959558, was at all times relevant herein, assigned to the 63rd Precinct and is presently assigned to the 63rd Precinct Detective Squad.
6. Defendant DETECTIVE THOMAS CLEMENTI, Tax No.959558, is being sued in his individual and official capacity.
7. Defendant DETECTIVE SPECIALIST TIMI TOMACRUZ, Tax No. 947545, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Defendant DETECTIVE SPECIALIST TIMI TOMACRUZ, Tax No. 947545, was at all times relevant herein, assigned to the 63rd Precinct.

9. Defendant DETECTIVE SPECIALIST TIMI TOMACRUZ, Tax No. 947545, is being sued in his individual and official capacity.

10. Defendant SERGEANT PIERO LASAPONARA, Tax No. 947157, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

11. Defendant SERGEANT PIERO LASAPONARA, Tax No. 947157, was at all times relevant herein, assigned to the 63rd Precinct and is presently assigned to the Warrant Squad.

12. Defendant SERGEANT PIERO LASAPONARA, Tax No. 947157, is being sued in his individual and official capacity.

13. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

14. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. By way of background, on September 30, 2020, at approximately 1:50 pm plaintiff Eric Romulus lawfully drove his vehicle in the vicinity of 619 East 76th Street, Brooklyn, New York, and plaintiff Steve Boursiquot was a lawful passenger in the vehicle, at which time plaintiffs saw a friend parked on the side of the road.

20. Plaintiffs decided to pull over to the side of the road to say hello to their friend.

21. Plaintiff Romulus legally pulled his vehicle to the side of the road and lawfully parked his vehicle.

22. Plaintiffs both exited Eric Romulus' vehicle, walked over to their friend's vehicle and got into the vehicle.

23. A very short time after plaintiff Boursiquot got into his friend's vehicle, he exited the vehicle and began to walk back to plaintiff Romulus' vehicle to get something from inside of Romulus' vehicle.

24. As plaintiff Boursiquot was walking back to Romulus' vehicle, an NYPD vehicle driven by the individually named police officer defendants, drove at a high rate of speed, the wrong way down the one-way street they were on and stopped in the vicinity of where plaintiffs were located.

25. Plaintiffs' friend exited his vehicle and attempted to run away from the police officers when they arrived, but the officers caught him.

26. The officers saw that plaintiff Boursiquot was not inside of his friend's vehicle when the officers arrived.

27. The defendants proceeded to unlawfully search plaintiffs' friend's vehicle, without consent, a warrant, probable cause, or any legal justification.

28. The officers allege that they recovered a loaded firearm and marijuana from the glove compartment of plaintiff's friend's vehicle.

29. Importantly, the officers knew that plaintiffs arrived at the location in a different vehicle and were only in their friend's vehicle for a matter of seconds before the defendants arrived at the location,

30. The defendants unlawfully searched, handcuffed, and falsely arrested plaintiffs without probable cause or legal justification.

31. At no time relevant herein did either plaintiff commit a crime or violate the law in any manner, nor did defendants possess objective facts to establish probable cause to believe they committed a crime.

32. Assuming *arguendo* that the defendants did recover a loaded firearm and marijuana from the glove compartment of plaintiffs' friend's vehicle, the officers did not have an objective factual basis to allege that either plaintiff had constructive possession over those items.

33. The officers provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence to purportedly justify why they arrested plaintiffs and charged them with committing crimes.

34. Plaintiffs were transported to Kings County Central Booking whereat the unlawful detentions continued until they were arraigned in Kings County Criminal Court on October 1, 2020, approximately 24 hours after they were initially arrested.

35. Plaintiff Eric Romulus was wrongfully charged with crimes he did not commit and that the police officers lacked probable cause to accuse him of committing, including but not limited to Criminal Possession of a Loaded Firearm, Criminal Possession of a Weapon in the Third Degree, Criminal Possession of a Firearm, Obstructing Governmental Administration in the Second Degree, Criminal Possession of a Weapon in the Fourth Degree, Possession of Pistol Ammunition, and Unlawful Possession of Marijuana in the Second Degree.

36. Plaintiff Steve Boursiquot was wrongfully charged with crimes he did not commit and that the police officers lacked probable cause to accuse him of committing, including but not limited to Criminal Possession of a Weapon in the Second Degree, Criminal Possession of a Weapon in the Third Degree, Criminal Possession of a Firearm, Obstructing Governmental Administration in the Second Degree, Criminal Possession of a Weapon in the Fourth Degree, Possession of Pistol Ammunition, and Unlawful Possession of Marijuana in the Second Degree.

37. The Court set bail for both plaintiffs at arraignment and neither plaintiff was able to immediately post bail.

38. Therefore, both plaintiffs were remanded into New York City Department of Corrections custody and detained at the Manhattan Detention Center.

39. Both plaintiffs were released from NYC Department of Corrections custody on October 2, 2020, after they each posted bail.

40. Plaintiffs were both required to make numerous court appearances in Kings County Criminal Court to address the false charges that were pending against them.

41. All charges brought against plaintiff Eric Romulus were dismissed and sealed in their entirety and terminated in plaintiff's favor on October 19, 2021.

42. Plaintiff Eric Romulus paid \$5,000 for a private criminal defense attorney to represent him in the criminal case.

43. All charges brought against plaintiff Steve Boursiquot were dismissed and sealed in their entirety and terminated in his favor on November 24, 2021

44. At no time relevant herein did either plaintiff commit a crime, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law.

45. Defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence and allegations about the evidence they allegedly recovered that purportedly formed defendants' basis for arresting plaintiff and charging him with crimes.

46. At no time relevant herein did either plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

47. Those officers that did not physically touch plaintiffs but observed their fellow officers violating plaintiffs' rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiffs' rights under New York State law and the United States Constitution are liable to plaintiffs for their failure to intervene.

48. Plaintiffs were deprived of their Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, and denied plaintiffs the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

49. At no time relevant herein did either plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

50. Defendants falsely arrested and maliciously prosecuted plaintiffs, without probable cause or legal justification.

51. Defendants violated plaintiffs' right to due process when they provided the District Attorney's Office with false, misleading, and incomplete evidence which formed the basis for initiating the criminal prosecution against plaintiff.

52. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully searched, questioned, frisked, falsely arrested, maliciously prosecuted, and denied plaintiffs the right to due process in violation of the Fourth and Fourteenth

Amendments to the United States Constitution, the common law, and the laws of the State of New York.

53. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

54. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

55. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

56. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiffs' injuries because defendants knew that there would not be any consequences for violating plaintiffs' rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

57. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiffs' arrests in this case.

58. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

59. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiffs to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth Amendment and Fourteenth Amendment Rights

60. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiffs to be unlawfully searched, frisked, questioned, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiffs' right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

62. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

64. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

67. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop and search inside plaintiffs' pockets and underneath his clothing, employed by defendants herein, and terminated plaintiffs' freedom of movement through means intentionally applied.

69. Defendants lacked probable cause to search plaintiffs.

70. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

73. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

75. Defendants commenced and continued criminal proceedings against plaintiffs.

76. There was actual malice and an absence of probable cause for the criminal proceedings against plaintiffs and for each of the charges for which he was prosecuted.

77. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

78. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiffs' Fourth Amendment rights.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process/ Right to a Fair Trial

80. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs numbered 1 through 79 with the same force and effect as if fully set forth herein.

81. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

82. Defendants filled out false and misleading police reports and a summons and forwarded them to the Kings County Criminal Court.

83. In withholding/creating false evidence against plaintiffs, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

84. As a result of the foregoing, plaintiffs sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

86. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. Defendants had an affirmative duty to intervene on behalf of plaintiffs whose constitutional rights were being violated in their presence by other officers.

88. Defendants failed to intervene to prevent the unlawful conduct described herein.

89. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

91. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Plaintiffs was unlawfully searched, interrogated, frisked, falsely arrested plaintiffs, and denied plaintiffs then right to due process without an objective factual legal basis to seize, arrest and prosecute plaintiffs pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

93. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

94. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully, and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

95. Defendant City of New York is liable to plaintiffs for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

96. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

97. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiffs' injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

98. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

99. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

100. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

101. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiffs and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiffs have been deprived of their rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

102. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein

JURY DEMAND

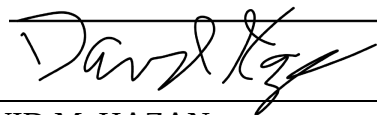
103. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs ERIC ROMULUS AND STEVE BOURSICOT demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiffs each recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 30, 2023

By:



DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiffs
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiffs is because plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
September 30, 2023



DAVID M. HAZAN